

[23 & 24 GEO. 5.] *Aberdeen Royal* [Ch. xvi.]
Infirmary and Mental Hospital Order Confirmation
Act, 1933.



CHAPTER xvi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Aberdeen Royal Infirmary and Mental Hospital. A.D. 1933.

[28th June 1933.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.
16 & 17
Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Aberdeen Royal Infirmary and Mental Hospital Order Confirmation Act 1933. Short title.

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SCHEDULE.

ABERDEEN ROYAL INFIRMARY AND
MENTAL HOSPITAL.

Provisional Order to change the name of the Corporation of the Royal Infirmery and Lunatic Asylum of Aberdeen and of the Asylum ; to confer further powers on the said Corporation and for other purposes.

WHEREAS by the Aberdeen Royal Infirmery and Lunatic Asylum Act 1887 (hereinafter referred to as " the Act of 1887 ") the persons therein nominated were incorporated under the name of the Corporation of the Royal Infirmery and Lunatic Asylum of Aberdeen (hereinafter referred to as " the Corporation ") and by the said Act the property and funds previously vested in the president and managers of the Infirmery of Aberdeen including the Royal Infirmery of Aberdeen and the Lunatic Asylum of Aberdeen were vested in the Corporation :

And whereas by the Act of 1887 various powers as therein mentioned were conferred on the Corporation respecting the said infirmery and asylum including powers to borrow money :

And whereas the Act of 1887 provided that the administration of the said infirmery and asylum should be vested in two boards of directors namely a board of directors of the said infirmery and a board of directors of the said asylum and that the boards of directors respectively should have and might exercise certain of the powers conferred on the Corporation as in the said Act mentioned and in accordance with the said provisions the said infirmery and asylum have since the passing of the Act of 1887 been so administered :

And whereas it is expedient to change the title and name of the Corporation and of the said asylum as hereinafter in this Order provided :

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And whereas in order to make provision for the cost of large extensions and improvements of the said asylum it is expedient that the powers as to borrowing money contained in the Act of 1887 should be amended as hereinafter in this Order provided : A.D. 1933.
—

And whereas it is expedient that the date upon which the annual general meeting of the Corporation is held should be altered and that the provisions of the Act of 1887 in respect of that and other matters should be amended all as hereinafter in this Order provided :

And whereas the benefits of the said infirmary have hitherto been available to all persons free of charge irrespective of the willingness of patients to make payment in respect of the benefits received by them :

And whereas it is expedient and would be in the public interest that the directors of the infirmary should be authorised to provide accommodation for the treatment of patients who are willing to pay for their maintenance and treatment and to make charges therefor as hereinafter in this Order provided :

And whereas it is expedient that the other provisions in this Order contained should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

1. This Order may be cited for all purposes as the *Aberdeen Royal Infirmery and Mental Hospital Order 1933* This Order and the *Aberdeen Royal Infirmery and Lunatic Asylum Act 1887* may be cited together as the *Aberdeen Royal Infirmery and Mental Hospital Acts 1887 and 1933.* Short title
and
citations.

2. This Order shall come into operation on the date of the passing of the Act confirming this Order which date is hereinafter referred to as “the commencement of this Order.” Commence-
ment of
Order.

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Interpre-
tation.

3.—(1) In this Order unless there be something in the subject or context inconsistent with or repugnant to such construction—

(a) The several words and expressions to which meanings are assigned by the *Aberdeen Royal Infirmary and Lunatic Asylum Act 1887* have the same respective meanings; and

(b) The following words and expressions have the meanings assigned to them in this section (that is to say) :—

“ Act of 1887 ” means the *Aberdeen Royal Infirmary and Lunatic Asylum Act 1887*;

“ Mental hospital ” means the mental hospital in Aberdeen and the branch thereof at Daviot and the Wellwood Nursing Home in the county of Aberdeen and any other branch of the said hospital to be established after the commencement of this Order.

(2) In this Order and in the *Act of 1887* unless there be something in the subject or context inconsistent with or repugnant to such construction the expression “ infirmary ” means the infirmary as defined by the *Act of 1887* and any additions thereto already made or to be made after the commencement of this Order.

Change of
name of
Corpora-
tion &c.

4.—(1) Section 2 (Interpretation) and section 4 (Managers) of the *Act of 1887* shall be read and construed as if the words “ the Corporation of the Royal Infirmary and Lunatic Asylum of Aberdeen ” were omitted therefrom and the words “ the Corporation of the Royal Infirmary and Mental Hospital of Aberdeen ” were inserted therein in lieu thereof.

(2) The *Act of 1887* shall be read and construed as if the words “ lunatic asylum ” wherever they occur were omitted therefrom and the words “ mental hospital ” were inserted in lieu thereof.

(3) The change of name of the Corporation and of the lunatic asylum (which asylum is referred to in the *Act of 1887* and is hereinafter in this section referred to as “ the asylum ”) shall not affect any rights or obligations of the Corporation or any authority or person whose designation may be affected by the said change or render defective

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any legal proceedings by or against the Corporation or such authority or person and any legal proceedings that might have been commenced or continued by or against the Corporation authority or person by the former designation may be commenced or continued by or against the Corporation authority or person as the case may be by the new designation. A.D. 1933.
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(4) Notwithstanding the change of name of the Corporation and of the asylum all deeds instruments purchases sales securities and contracts before the commencement of this Order made or carried into effect shall be as effectual to all intents in favour of or against and with respect to the Corporation or any such authority or person as aforesaid as if the names of the Corporation and of the asylum had remained unchanged.

(5) Any Act of Parliament or Order made under an Act of Parliament passed or made prior to the commencement of this Order shall apply to in favour of or against the Corporation or any such authority or person as aforesaid in as full a manner as it would have applied to the Corporation authority or person as the case may be if this Order had not been confirmed.

(6) The institutions buildings and premises known as "the Royal Infirmary and Lunatic Asylum of Aberdeen" shall be known and designated by the title and name of "the Royal Infirmary and Mental Hospital of Aberdeen."

(7) No legacy bequest gift or trust in any will testamentary disposition deed or other instrument (whether such will testamentary disposition deed or other instrument bears date before or after the commencement of this Order) shall lapse or fail by reason of the confirmation of this Order but any such legacy bequest gift or trust which but for this Order would have accrued or enured for the benefit of the Corporation under its former designation shall accrue and enure to the Corporation under its new designation and any executor trustee or other person in a fiduciary capacity paying any such legacy bequest gift or trust moneys to the Corporation under its new designation in pursuance of this section shall be and is hereby relieved from all liability accordingly.

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—
Borrowing
powers.

5.—(1) Section 6 (Powers of Corporation) of the Act of 1887 shall be read and construed as if after the words “ and they may also borrow money upon and grant “ bonds and dispositions in security over any lands “ tenements or other heritages or heritable subjects “ already acquired or purchased or which shall at any “ time hereafter be acquired or purchased for the benefit “ of the infirmary and lunatic asylum or either of “ them ” there were inserted the following words “ or “ upon the security of the moveable property of the “ infirmary or mental hospital or without security.”

(2) Any money borrowed after the commencement of this Order shall be repaid by the Corporation within such period not exceeding thirty years from the date of borrowing as may be fixed by the Corporation.

Amend-
ment of
section 7 of
Act of 1887.

6. Section 7 (General meetings) of the Act of 1887 shall be read and construed as if the words “ second Wednesday of February ” were omitted therefrom and the words “ third Wednesday of March ” were inserted in lieu thereof and the Act of 1887 shall be read and construed as if the third Wednesday of March were substituted for the second Wednesday of February wherever such last-mentioned date occurs therein in relation to the annual general meeting of the Corporation.

Amend-
ment of
section 16
of Act of
1887.

7. Section 16 (Administration vested in boards of directors) of the Act of 1887 shall be read and construed as if the words after the words “ as the case may be ” to the end of the section were omitted therefrom.

Regula-
tions.

8. Section 19 (Corporation to make regulations &c.) of the Act of 1887 shall be read and construed as if the words after the words “ officers and servants ” to the end of the section were omitted therefrom and the following words inserted in lieu thereof : “ Provided that “ before exercising the power of making such regulations “ or varying any regulations notice of the proposed “ regulation or variation shall be given at a meeting of “ the Corporation either ordinary or specially called at “ which meeting such regulation or variation shall by “ a majority of the persons present and voting at the “ meeting be either agreed to or rejected In the event “ of the said regulation or variation being agreed to at “ such last-mentioned meeting it shall be submitted for

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“ confirmation to a further meeting of the Corporation A.D. 1933.
“ either ordinary or specially called and to be held not —
“ earlier than one week or later than one calendar
“ month from the day of the meeting of the Corporation
“ at which such regulation or variation was agreed to
“ and in the event of such regulation or variation being
“ confirmed by a majority of the persons present and
“ voting at such further meeting it shall then come into
“ operation and have full force and effect.”

9. The directors of the infirmary may provide Paying
accommodation for the treatment of patients who are patients.
willing to pay for their maintenance and treatment in
the infirmary and may charge such patients such sums
as the directors of the infirmary from time to time may
consider reasonable.

10. All costs charges and expenses of and incident Costs of
to or connected in any way with the preparing applying Order.
for obtaining and confirming this Order or otherwise in
relation thereto shall be paid by the Corporation.

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